

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,115 in principal, plus interest, costs, and attorneys' fees, for a total amount of \$12,273.56 (Memos on costs and fees were filed on 8/23/25 and 2/13/26.)

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall submit a proposed order and judgment.

4. 9:00 AM CASE NUMBER: L24-09985
CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA
***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

Plaintiff also submitted a memo of costs and fees, totaling \$1,365, and filed on 2/17/26.

In the order filed 12/24/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 9/25/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 9/25/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the

defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$34,487.29, on a loan.

Defendant’s Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt, owing, \$34,487.29, as well as costs and fees.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED, in the principal amount of \$34,487.29.
2. Additional costs and fees of \$1,365 are granted.
3. Plaintiff shall submit a proposed order and judgment.

5. 9:00 AM CASE NUMBER: L24-10360
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. FERNANDO RIVERA
*HEARING ON MOTION FOR DISCOVERY